

Smt. Monika Mishra vs Sri Parag Mishra on 18 May, 2026

Author: Yogendra Kumar Srivastava

Bench: Yogendra Kumar Srivastava

HIGH COURT OF JUDICATURE AT ALLAHABAD

Neutral Citation No. - 2026:AHC:114846

HIGH COURT OF JUDICATURE AT ALLAHABAD

TRANSFER APPLICATION (CIVIL) No. - 891 of 2023

Smt. Monika Mishra

.....Applicant(s)

Versus

Sri Parag Mishra

.....Opposite Party(s)

Counsel for Applicant(s)

:

Ramesh Chandra Agrahari

Counsel for Opposite Party(s)

:

Bhavisya Sharma, Manvendra Kumar, Vishal Mishra

Court No. - 35

HON'BLE DR. YOGENDRA KUMAR SRIVASTAVA, J.

Heard Sri Ramesh Chandra Agrahari, learned counsel for the applicant and Sri Vishal Mishra, learned counsel appearing for the opposite party.

Present application has been preferred by the Applicant-wife under Section 24 of the Code of Civil Procedure, 1908, seeking transfer of Case No. 932 of 2023 (Parag Mishra vs. Smt. Monika Mishra), under Section 13(1) A & B of the Hindu Marriage Act, 1955 from the Court of the Principal Judge, Family Court, Kanpur Nagar to the Principal Judge, Family Court, Auraiya.

The order-sheet of the case indicates that on 08.11.2023 after considering the submissions made on behalf of the applicant and the inconvenience pleaded by the applicant, this Court had directed issuance of notice and stayed the further proceedings of the aforesaid case.

It is submitted that the marriage of the applicant with the opposite party was solemnized on 08.09.2014. It is further submitted that thereafter she was subjected to harassment for dowry and on 07.11.2022 she was sent back to her father and since then the opposite party has not contracted her.

Complaint case No. 53 of 2023, under Section 12 of Protection of Women From Domestic Violence Act, 2005 and Maintenance Case No. 546 of 2023, under Section 125 Cr.P.C. are stated to be pending before the courts of competent jurisdiction at Auraiya.

It is submitted that the applicant is totally dependent on her father and has no independent financial means and as such she would suffer grave hardship in contesting the proceedings at Kanpur Nagar.

Counsel appearing for the opposite party states that although counter affidavit has been filed, however, he has instructions from the opposite party that the opposite party has no objection to the transfer application being allowed.

This Court, in its recent decisions in Smt. Akansha Saxena v. Shikhar Saxena, 2026 (3) ADJ 104, and Smt. Arju @ Vimal v. Umakant Parasar, 2026 (3) ADJ 66 has observed that in matrimonial cases, the convenience of the wife must be looked into; the cardinal principle for exercise of power under Section 24 CPC being that the ends of justice should be subserved.

In view of the aforesaid discussions, and particularly in view of the hardship that has been pleaded by the applicant and the categorical "No Objection" expressed on behalf of the Opposite Party, this Court is of the considered opinion that the present case is a fit one for exercise of power under

Section 24 CPC. The transfer sought, being by consent of the parties and in furtherance of justice, deserves to be allowed.

Accordingly, Civil Misc. Transfer Application is allowed with the following directions:

- (i) The proceedings of Case No. 932 of 2023 (Parag Mishra vs. Smt. Monika Mishra), under Section 13(1) A & B of the Hindu Marriage Act, 1955, are hereby withdrawn from the Court of the Principal Judge, Family Court, Kanpur Nagar and transferred to the Court of the Principal Judge, Family Court, Auraiya.
- (ii) The Principal Judge, Family Court, Kanpur Nagar is directed to transmit the entire case record to the Transferee Court at District Auraiya within fifteen days from the date of receipt of a certified copy of this order.
- (iii) The Transferee Court shall proceed with the matter from the stage at which it was transferred and shall endeavor to conclude the proceedings expeditiously.

(Dr. Yogendra Kumar Srivastava,J.) May 18, 2026 Imroz